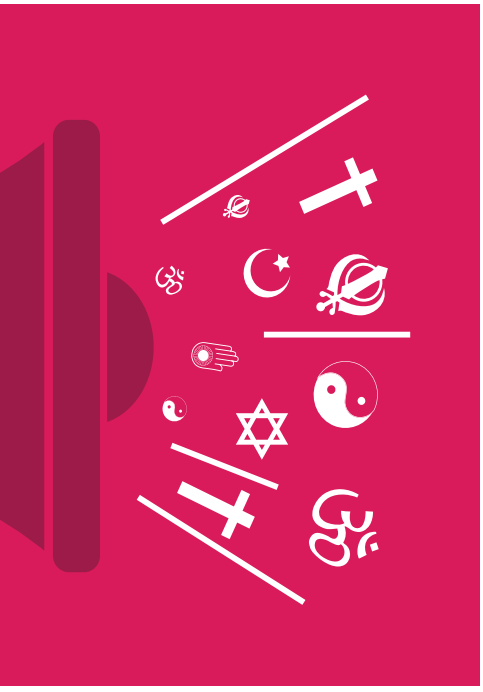


THE ANTITHESIS OF FUNDAMENTAL RIGHTS



BY JUSTICE SHIV NARAYAN DHINGRA (RETD)

In 1976, the Swaran Singh Committee was appointed to recommend constitutional amendments. It submitted its report the same year itself, and the Preamble of the Constitution was amended based on this report through the 42nd Amendment. The two words 'socialist' and 'secular' were added in the Constitution and, instead of 'sovereign democratic republic', we became a 'sovereign socialist secular democratic republic'. In an article published in the *Illustrated Weekly of India* (July 4, 1976), eminent jurist N.A. Palkhivala argued that the Preamble was a part of the Constitution statute, not of the Constitution. Article 368 deals only with an amendment of the Constitution, but not of the Constitution statute. The Preamble cannot be amended under Article 368. It refers to the most momentous event in India's history and sets out, as a matter of historical fact, what the people of India in 1949 resolved to do for their unfolding future. No parliament can amend or alter the historical past.

Socialism is the antithesis of the fundamental rights granted to the people of this country by the Constitution. Socialist countries do not give their citizens freedom of speech, freedom to do work of one's liking, nor to utilise their earnings according to their own wishes. In democracy, fundamental rights and human rights are sacrosanct. But in socialism, the Heads of State and State Assemblies become supreme. In our Constitution, there are various provisions for the upliftment of the poor and they are followed by the State. But inserting the word 'socialism' gives the State the right to interpret the Constitution and its provisions, to curb the fundamental rights of the people. In this effort, the government had nationalised banks and other industries, and can still use the socialist pattern to nationalise private industries. It is not that the framers of the Constitution did not know this: there were debates in the constituent assembly on the word 'socialism' and, after the debate, it was decided not to include it in the Preamble, and to have the necessary provisions for the upliftment of the downtrodden and poor in the Constitution itself, without binding the government to the idea of socialism. The fate of fundamental rights in the two prominent socialist countries of the time, China and the Soviet Union, was and is known to everyone.

THE INTRODUCTION OF THE WORDS 'SOCIALIST' AND 'SECULAR' INTO THE PREAMBLE OF THE CONSTITUTION IS A DEADLY SIN COMMITTED THROUGH THE 42ND AMENDMENT

The word 'secular' has no history in India. We in India believe in 'Sarva Dharma Sama Bhava', which means respect for every religion, every way of life and respect for all thoughts that the human mind can develop in respect of his upliftment, which do not impact society in a negative manner. In India, history shows that the State has only believed in dharma, i.e. subscribing to the rule of law and the people. Dharma cannot be equated to religion; there is no equivalent word for dharma in any other language. Dharma actually means the overall duties of the State towards its subjects and the duties of a man towards the dharma. Religion is faith, while dharma is about duties. The word secular, therefore, should have no place in the Indian Constitution. Different provisions give enough liberty to the people of this country to follow their own faith and religion. The dharma of the State has been given in various articles of the Constitution. The translation of secular as 'Dharma Nirpeksh' is not only faulty but strikes at the very root of the Indian nation. No nation can be Dharma Nirpeksh, i.e. indifferent to its duties. 'Sarva Dharma Sama Bhava' compels you to have respect for every faith and religion.

I consider the introduction of the words 'socialist' and 'secular' into the Preamble of the Constitution a deadly sin committed through the 42nd Amendment, to show that it was not the Constitution, but the will of the ruler, which was supreme. ■

The author is a former judge of the Delhi High Court